

DISTRIBUTION SALE AND POSSESSION OF NON-FUNGIBLE TOKENS

From time-to-time Radix® Publishing Limited being a company registered in Jersey under No 13697 may offer, distribute or sell or allocate Non-Fungible Tokens for a variety of purposes.

Save where specific terms are applied to particular types or classes or types of NFTs these terms will apply to all use, receipt, purchase, possession, transmission and exchange redemption or resale of Non-Fungible Tokens (NFT) and related products offers or benefits.

All NFT's are allocated delivered sold or distributed (as the case may be) to enhance the experience of and encourage use of the Radix® ledger, the radix network, and the development of applications for use on that network/ledger.

1. WHAT IS A NON-FUNGIBLE TOKEN?

- 1.1 An NFT comprises two parts namely the cryptographic token (the Token) held by a user's wallet which represents a transaction record on a blockchain and enable the holder of the relevant private key to access display and where relevant exchange an original work, device or code (**the Work**) which is stored on a blockchain or other database. Collectively the Token and the Work are referred to as **the/an NFT**.
- 1.2 An NFT may perform the function of a ticket coupon permission, authorisation or award.
- 1.3 An NFT may be unique or one of a series and it may be transferrable or not, depending on its purpose or function. In each case we will notify potential beneficiaries of any distribution or allocation and the nature and purpose of any such NFT.
- 1.4 We have no obligation to distribute or provide any NFT nor to exchange or redeem any NFT.
- 1.5 NFT's may have no intrinsic or marketable value.
- 1.6 Any Works associated with an NFT may be digital files such as photos, videos, audio or may be used to execute code or provide access to services or other benefits to which the User may become entitled.
- 1.7 Each digital file may be unique, or accessible or available to a limited number of holders.
- 1.8 We will specify the smart contract address; the NFT Token ID; the blockchain on which the NFT is stored; the server or network on which the digital asset is stored; and the NFT metadata. You must review this information and conduct all due diligence and make such enquiries as you consider appropriate, we do not warrant the accuracy or completeness.
- 1.9 We do not warrant that a Work nor the functionality permission or benefits attached to any NFT will continue to be available.
- 1.10 We may withdraw any rights or privileges attached to an NFT at any time without liability.

2. DISTRIBUTION OF NFT'S AS CREDENTIALS

2.1 NFT's may be distributed allocated or awarded as credentials to;

- (a) access specific communications channels (such as private discord/telegram channels)
- (b) to enable the user to claim rewards and benefits to which the user may be or become entitled to.
- (c) Provide access to claim rewards and benefits which may be made available from time to time.

2.2 NFT's distributed by Us

- (a) do not provide any right license or interest, express or implied, in, or to any copyrights or other intellectual property rights in or relating to any Work product or property or legal or equitable interest in any property or otherwise.
- (b) do not grant any right or interest in any management or any entity, nor interest in any organisation nor any right to vote, receive any dividends or payments in money or money's worth. NFT's are not redeemable for value or otherwise.
- (c) do not provide any the right to distribute or otherwise commercialise any related **Work**;
- (d) may include rights and functionality provided by the **NFT that** terminate sale, transfer, disposition, burning or other relinquishment of the **NFT**;

2.3 We have no obligation to replace compensate or reimburse you in any way should you lose access to or control of any NFT by reason of loss or corruption or unavailability of your private key.

2.4 We may distribute or allocated an NFT as

- (a) recognition of the right to execute the functionality applicable to the particular **Token** (b) as credentials to an associated smart contract
- (c) to provide conditional access or benefits which may include;
 - (i) the right to store, sell and transfer **possession**; and
 - (ii) the right to receive goods or services from the Seller of the Token in accordance with our Terms of Sale subject to you
 - (iii) making any ongoing NFT payments payable in accordance with the terms applicable to the particular NFT;
 - (iv) abiding by any restrictions on the resale of the NFT;
 - (v) potential expiration withdrawal of the NFT

3. YOUR WARRANTIES

3.1 You warrant on an ongoing basis that:

- (a) any person upon whose behalf you are acting (as disclosed by you) is duly organized and validly existing under the applicable laws of the jurisdiction of its organisation, and that you are duly authorised by such legal entity to act on its behalf and to give all of the undertakings and warranties in these Terms and Conditions on behalf of yourself and any person on whose behalf you are acting;

- (b) you will comply with all laws, regulatory requirements, and rules as are applicable to the acquisition exchange ownership, possession, use, sale, purchase or transmission of the particular NFT you are proposing to acquire;
- (c) you have undertaken all inquiries and conducted all due diligence and taken such legal accounting and tax advice as you consider appropriate and acknowledge that the acquisition, possession or use of certain tokens may be prohibited or restricted by applicable laws, regulations, or rules in your local jurisdiction;
- (d) to the extent you are subject to any restrictions which apply to the purchase, receipt, possession, exchange transmission, of any NFT tokens in any jurisdiction, you will observe and comply, and continue to observe and comply, with all such laws, regulations and restrictions at your own expense and fully and effectively indemnify and hold Radix® Publishing Limited and its officers employees and agents, in relation to any losses demands or claim(s) resulting from your failure to do so;
- (e) you will not procure promote or encourage through, or use the NFT tokens to finance, engage, or otherwise support unlawful activities in any territory, and that all payments in fiat or tokens will be made by you only, in your name, lawfully authorised by you, from a digital wallet or bank account in accordance and compliance with all applicable local laws, regulations, rules and restrictions as may apply to such payments or transfers from time to time;

4. PRIVACY

- 4.1 We will collect and process information relating to you in accordance with the privacy notice which can be found at <https://www.radixdlt.com/privacy-policy> by entering into any agreement with us relating to your acquisition use or possession of NFT's that we distribute you consent to the use of you data in accordance with that privacy notice.
- 4.2 We shall be entitled, and you understand and agree that We may be required to report any transaction relating to tokens to regulatory or tax authorities in diverse jurisdictions if we are permitted to do so we will notify you of any such request but a failure to do so will not give rise to any liability on Us to You.

5. SANCTIONS AND DENIED PERSONS

- 5.1 You warrant that Your wallet is not owned by or associated with:
 - (a) a citizen or resident of, or located in, a geographic area that is the target of sanctions or embargoes imposed by the European Union, the United Kingdom, the United Nations or the United States; or
 - (b) an individual, or an individual employed by or associated with an entity, identified on the US Department of Commerce's Denied Persons or Entity List, the US Department of Treasury's Specially Designated Nationals or Blocked Persons Lists, or the US Department of State's Debarred Parties List, or similar lists promulgated by the government of the European Union, the United Kingdom, or the United Nations.

6. BREACH OF YOUR WARRANTIES AND INDEMNITY

- 6.1 You acknowledge and agree that any breach of the warranties given by you pursuant to Clause 3 above entitles Us to refuse to complete, to terminate or to

cancel all and any agreements we have with you (on behalf of the Seller) or deliver any NFT's.

6.2 The right of termination pursuant to Clause 6.1 shall be in addition to any other remedy We may have included restriction of access to our platform or deny You the right to or use of or access to any tokens/NFTs which may include a right to the return and burning of any NFT's which are purchased by you without liability.

6.3 In the event of any question arising as regards the source, provenance or legal status of any tokens or monies or representations of money received by Us from you or on your behalf including a claim by a third-party claiming title or interest, or a request by any regulatory or enforcement agency, court or we may:

- (a) without liability to you withhold restitution of any monies or representation of monies and tokens deposited or paid to us and any NFT tokens; or
- (b) retain custody and control of all tokens assets and right without liability until the provenance, legal status or ownership of the same has been established to Our satisfaction which may include final determination by a court of law and/or a judgment recognised by the High Court of England and Wales).

6.4 You hereby agree to indemnify and hold Us safe against all losses, claims, costs, demands and awards by you and/or any third-party including the costs of bringing or defending any proceedings arising out of or relating to the provenance, ownership, legal status, source of the money tokens or representations of money received by Us from you or on your behalf.

7. TRANSFER AND RESALE

7.1 No warranty or assurance is provided that any NFT you acquire will have any resale value or that there will be any liquid market for such.

7.2 We are not obliged to establish or maintain any integration with a third-party marketplace.

8. RISKS AND DISCLOSURES

8.1 By purchasing, holding accepting and using an **NFT**, you expressly acknowledge and assume all risks including without limitation:

- (a) Seller, buyer or user error;
- (b) forgotten passwords, mistyped addresses, incorrectly constructed transactions;
- (c) incorrectly programmed NFTs;
- (d) hard forks;
- (e) mining attacks, cybersecurity attacks, weaknesses in our security;
- (f) malfunctions or other technical errors, including but not limited to telecommunications failure, malicious software;
- (g) unfavourable regulatory determinations or actions in one or more jurisdictions (including with respect to NFTs or cryptocurrencies);
- (h) taxation of NFTs or cryptocurrencies, personal information disclosure;

- (i) uninsured losses, unanticipated risks, volatility risks, server failure or data loss, corrupted or otherwise inaccessible **digital wallets**;
- (j) unauthorised access to applications, inability to access or transfer the **NFT**;
- (k) inability to access or display the **digital asset**, risks arising from third-party providers, including third-party providers that may **mint** the **NFT** and/or store the **digital asset**;
- (l) providers ceasing trade or terminating storage or any other services;
- (m) unauthorised third-party activities;
- (n) without limitation the introduction use of viruses or other malicious code, the use of phishing, sybil attacks, 51% attacks, brute forcing;
- (o) changes to the protocol rules of the **blockchain** (i.e., “forks”), or other means of attack that affect, in any way, the **NFT**.

9. ONGOING PAYMENTS

- 9.1 Whilst we use reasonable endeavours to alert you (where applicable) to the fact that **ongoing NFT payments** are payable in relation to an **NFT**, you alone are responsible for determining the extent of any **ongoing NFT payments**, including any automated fees, commissions or royalties, in the **NFT smart contract**, which may be due by you to the seller or other third party upon a subsequent transfer of the **NFT** by you to a third party, and by recipients of the **NFT** going forward.
- 9.2 You are responsible for any ongoing NFT payments, including for making any disclosures to you in connection therewith other than alerting you to the fact that such payments are payable.
- 9.3 Ongoing NFT payments that are triggered by the sale itself are deducted from the proceeds of sale

10. TAXES

- 10.1 In relation to any the sale/distribution of each **NFT**, we will determine whether any applicable tax duties or levies may be required to be collected from you in accordance with applicable law, including without limitation any VAT sales tax or its equivalent in any territory.
- 10.2 Depending upon applicable law, an **NFT** will generally be deemed to be delivered to you in the United Kingdom.
- 10.3 In addition to your responsibilities for paying all applicable taxes relating to your purchase of an **NFT**, in the event that your payment is made in cryptocurrency you will also be responsible for any income or other tax arising from your disposition of such cryptocurrency.
- 10.4 You are responsible for all applicable tax including any VAT, sales or compensating use tax or equivalent tax wherever such taxes may arise.
- 10.5 For **NFTs** which are delivered to recipients who are located in, citizens of, or domiciled in the United States, sales or use tax may be due and/or any other charges related to the **NFT**, regardless of the nationality or citizenship of the purchaser.

- 10.6 We will collect sales tax where legally required. The applicable sales tax rate will be determined based upon the state, county, or locale to which the NFT will be shipped or delivered.
- 10.7 Successful bidders claiming an exemption from sales tax must provide appropriate documentation prior to the release of the NFT.
- 10.8 For shipments/deliveries to those states for which we are not required to collect sales tax, a successful bidder may be required to remit use tax to that state's taxing authorities.
- 10.9 We recommend you obtain your own independent tax advice.

11. PAYMENT

- 11.1 If you are paying using crypto tokens these must be deposited in a wallet for the full value including all sales purchase tax and VAT which is payable.
- 11.2 In case of issuing an invoice for VAT or other purposes we may issue this in fiat in £GBP or \$USD at our discretion. Any non-payment shall constitute a debt in the fiat currency nominated by us calculated in accordance with this clause.
- 11.3 Except in the event, you are a resident of Mainland China, you, the buyer, may make payment of the purchase price in the crypto currency stipulated by Us via a digital wallet or smart contract transfer for the particular NFT.
- 11.4 We reserve the right to specify that we will only accept a particular cryptocurrency or cryptocurrencies.
- 11.5 We may at our absolute discretion refuse participation involving payment from any wallet or class of wallet without giving reasons.
- 11.6 You agree, upon our request, to provide documentation confirming that the cryptocurrency payment was made from a digital wallet owned by you and maintained by an approved provider.
- 11.7 "Ownership" of a digital wallet means either you hold or have held on your behalf, or the company on whose behalf you are bidding holds, or has held on its behalf, the private keys associated with that digital wallet or that the provider of the digital wallet recognises you, or the company you represent as owning the cryptocurrency associated with that digital wallet.
- 11.8 Partial payments toward a single NFT from multiple digital wallets will not be allowed. If you purchase multiple NFTs, you may purchase one NFT with payment from one digital wallet and another NFT with payment from a different digital wallet, but this must be accomplished through two separate transactions paying the purchase price in full.
- 11.9 Partial payment in cryptocurrency, in addition to fiat currency or another type of cryptocurrency, is not permitted.
- 11.10 Partial payments of a single NFT from multiple digital wallets will not be allowed. If you purchase multiple NFTs, you may purchase one NFT with payment from one digital wallet and another NFT with payment from a different digital wallet, but this must be accomplished through two separate transactions paying the purchase price in full.

12. RISK AND TRANSFER OF TITLE

- 12.1 The risk in title to and responsibility for the NFT when we instigate the transfer of the NFT to your wallet (Your wallet).
- 12.2 You are responsible for implementing reasonable measures for securing the digital wallet or other storage mechanism you use to receive and hold the NFT, including any requisite private key(s) or other credentials necessary to access such storage mechanism(s), and further you specifically acknowledge that the risk of acquiring the NFT from the seller, transferring the NFT to others, and holding or using the NFT or your digital wallet rests entirely with you. If your private key(s) or other access credentials are lost, you may lose access to your NFT. We are not responsible for any such losses, including, but not limited to, losses arising from third-party service providers.
- 12.3 We are not responsible if the digital asset becomes inaccessible to you for any reason, or for any modifications or changes to the digital asset, including the digital asset being deleted. You acknowledge that the creator of the Work or a third party could make additional copies of, and distribute, the digital asset, and could sell or otherwise assign the copyright or other intellectual property rights or economic rights in the digital asset.
- 12.4 We are not responsible for any uses you make of the NFT or for any future transfers you make of the NFT.

13. MAINTENANCE OF ACCESS TO THE WORK

- 13.1 We are responsible for uploading and paying the fees applicable to the storage of any Work applicable to or accessed by use of an NFT. thereto.
- 13.2 We are not responsible for the payment of additional fees which may be imposed.
- 13.3 We are not responsible nor liable for any loss suffered by you arising from the failure or non-availability of the systems or networks after we have uploaded the Work.

14. LIMITATION /EXCLUSION OF LIABILITY

- 14.1 Radix® Publishing Limited is not a wallet provider, exchange, broker, or financial institution. We do not provide custody services.
- 14.2 Neither Radix® Publishing Limited nor any affiliates, which shall include all parent and holding companies subsidiaries and companies having a filial relationship in the same group shall be responsible for or have any liability to You.
- 14.3 Nothing in this agreement limits any liability which cannot legally be limited, including but not limited to liability for:
- (a) death or personal injury caused by negligence;
 - (b) fraud or fraudulent misrepresentation; and
 - (c) breach of the terms implied by section 12 of the Sale of Goods Act 1979 or section 2 of the Supply of Goods and Services Act 1982 (title and quiet possession).

14.4 Subject to Clause 14.3 We shall not be responsible for any losses you suffer by reason of any use or misuse of any NFT, or any failure of any NFT perform or function as intended or expected whether arising in tort, contract, statute or otherwise including but not limited to.

- (a) Loss of profits.
- (b) Loss of sales or business.
- (c) Loss of agreements or contracts.
- (d) Loss of anticipated savings.
- (e) Loss of use or corruption of software, data or information.
- (f) Loss of or damage to goodwill.
- (g) Indirect or consequential loss.
- (h) Losses incurred by You arising out of or in connection with any third-party claim against you which has been caused by the act or omission by Us.

14.5 For these purposes, third party claims shall include but not be limited to demands, fines, penalties, actions, investigations, proceedings (commencing or defending), including but not limited to those made or commenced by subcontractors, Our personnel, regulators and your customers.

14.6 To the extent that the laws of any other country are deemed to apply;

- (a) Some jurisdictions do not allow the exclusion or limitation of incidental or consequential damages, so the above limitation or exclusion may not apply to you.
- (b) Some jurisdictions also limit disclaimers or limitations of liability for personal injury from consumer products, so this limitation may not apply to personal injury claims.

15. PAYMENT OF TAXES.

15.1 In this clause Tax means; any tax, levy, impost, duty or other charge, fee, deduction or withholding of a similar nature (including any penalty, surcharge or interest payable in connection with the failure to pay, or delay in paying, any of these).

15.2 All prices and consideration for goods and services are quoted exclusive of VAT and other Tax(es) attributable to the purchase or resale by the Buyer of any NFT and the provision of services by LTD INC Limited and the Seller which are payable by the Buyer in addition thereto.

15.3 The Buyer shall be responsible for any Tax arising in connection with the supply transfer of any asset (including but not limited to an NFT) the resale of that asset or right and the provision of any services by LTD INC Limited and or the Seller or the provision of access to control of any copyright work or other intellectual property and the payment of any royalty, fee or other consideration.

15.4 The Buyer hereby indemnifies LTD INC Limited and the Seller in respect of any primary liability assessed (including by self-assessment) in consequence of Your primary liability and which the Buyer fails to discharge (in whole or in part); and

15.5 any costs and expenses incurred by LTD INC Limited and or the Seller in connection with dealing with and discharging of the liability referred to in Clause 15.3

15.6 The Buyer shall pay such amounts in cleared funds to the LTD INC Limited promptly following the notice to the Buyer and, in any case, within five business days following notice.

16. FORCE MAJEURE

16.1 We will not be liable or responsible to the you, nor be deemed to have defaulted under or breached these Terms, for any failure or delay in fulfilling or performing any of these Terms, when and to the extent such failure or delay is caused by or results from the following force majeure events ("Force Majeure Event(s)"):

- (a) acts of God;
- (b) flood, fire, earthquake, epidemics, pandemics, including the 2019 novel coronavirus pandemic (COVID-19), tsunami, explosion;
- (c) war, invasion, hostilities (whether war is declared or not), terrorist threats or acts, riot or other civil unrest;
- (d) government order, law, or action;
- (e) embargoes or blockades in effect on or after the date of this agreement;
- (f) strikes, labour stoppages or slowdowns or other industrial disturbances;
- (g) shortage of adequate or suitable Internet connectivity, telecommunication unavailability of telecommunications infrastructure or network transmission capability however caused whether malicious or accidental, breakdown or shortage of adequate power or electricity; and
- (h) other similar events beyond our control.

17. PERFORMANCE DURING FORCE MAJEURE

17.1 If we suffer a Force Majeure Event, we will use reasonable efforts to promptly notify you of the Force Majeure Event, stating the period of time the occurrence is expected to continue. We will use diligent efforts to end the failure or delay and ensure the effects of such Force Majeure Event are minimized.

17.2 We will resume the performance of our obligations as soon as reasonably practicable after the removal of the cause. In the event that our failure or delay remains uncured for a period of forty-five (45) consecutive days following written notice given by us under this Clause, we may thereafter terminate these Terms upon fifteen (15) days' written notice.

18. GIVING OF NOTICE

18.1 A notice or communication given to us under or in connection with this agreement shall be in writing and sent to:

- (a) our registered office address; or
- (b) to the following email address: hello@radixdlt.com

(c) as we otherwise notify you in writing.

18.2 A notice or communication given to you under or in connection with this agreement shall be in writing and sent to the email address associated with your account on our platform from time to time.

18.3 This clause 18 sets out the delivery methods for sending a Notice to a party under this agreement and, for each delivery methods, the date and time when the notice is deemed to have been received or given (provided that all other requirements of this clause have been satisfied);

(a) if delivered by hand, on signature of a delivery receipt or at the time the notice is left at the address;

(b) if sent by pre-paid first-class at the time recorded by the delivery service;

(c) if sent by email, at the time of transmission (provided that no non-delivery notification is received by the sender)

(d) If deemed receipt under this Clause 18.3 would occur outside business hours in the place of receipt, it shall be deferred until business hours resume which means 9.00am to 5.00pm Monday to Friday on a day that is not a public holiday in the place of receipt.

(e) This clause does not apply to the service of any proceedings or other documents in any legal action or, where applicable, any arbitration or other method of dispute resolution.

19. THIRD PARTY RIGHTS

The PARTIES do not intend that any term of this AGREEMENT should be enforceable by any person who is not a party to this AGREEMENT by virtue of the Contracts (Rights of Third Parties) Act 1999 or otherwise.

20. ENTIRE AGREEMENT

20.1 These Terms and Conditions constitute the entire agreement between the PARTIES and supersedes and extinguishes all previous agreements, promises, assurances, warranties, representations and understandings between the PARTIES, whether written or oral, relating to its subject matter.

20.2 Each PARTY agrees that it shall have no remedies in respect of any statement, representation, assurance or warranty (whether made innocently or negligently) where such statement, representation, assurance or warranty is not set out in these Terms and Conditions.

20.3 Each PARTY agrees that it shall have no claim for innocent or negligent misrepresentation or negligent misstatement based on any statement in these Terms and Conditions.

21. DEALING AS A CONSUMER

21.1 If You are a consumer, we will first seek to resolve any dispute or complaint by you or with you in accordance with our Complaints Procedure which can be found at <http://www.radixdlt.com/complaints-procedure> unless we consider it reasonable to seek a court remedy known as an injunction in which case we may go directly to court.

21.2 If resolution is not possible or timely using our Complaints Procedure, we may refer any dispute worth more than GBP 50,000 to arbitration in accordance with Clause 22

21.3 Nothing in this Clause shall restrict your rights as a consumer to commence proceeding before the courts of England and Wales in respect of your rights as a Consumer.

21.4 Such courts having exclusive jurisdiction for such purpose.

22. LAW AND JURISDICTION

22.1 Each PARTY irrevocably agrees on behalf of itself and its successors in title that any dispute or claims (including non-contractual disputes or claims) arising out of or in connection with this AGREEMENT or its formation or which incorporates these Terms and Conditions shall be subject to the laws of England and Wales

22.2 Save as provided by Clause 21 all disputes and differences arising out of or relating to this agreement including without limitation any issue of personal or subject matter jurisdiction shall be resolved by arbitration in London in accordance with the rules of the London International Arbitration Centre by a single arbitrator in English according to the laws of England and Wales.

23. SITUS

23.1 The situs of this AGREEMENT and all debts obligations and causes of action arising out of or relating to the acquisition operation use and functioning storage and transmission of any tokens including the relevant NFT and any Works permission rights or privileges related thereto are deemed to made, performed, delivered, stored and located in England, irrespective of the location of any servers, computers, networks keys, access points nor the holders domicile, residence or principal place of business, nor that of any person accessing controlling operating any nodes systems or computers which engage the blockchain on which the NFT created or where the WORK is stored or the place where transactions relating to it are initiated or the benefit received.

23.2 Any fees and payments due in respect of the purchase of the NFT shall be recoverable in England which shall be the situs of debts due to Us as well as for all payments made irrespective as to the location of any bank account or domicile of any counterparty or the situs of any account nominated by Us or any other party for the receipt of funds (including tokens).

23.3 Nothing in this Agreement shall prevent us from enforcing Our rights in relation to any Intellectual Property which is owned by or licensed to Us in accordance with the laws applicable to such rights in any territory where such Intellectual Property rights are owned or used (whether such use is authorised or not).

23.4 All operation of conflict of laws is excluded.